

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #02	CCRB Case #: 201500025	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/31/2014 3:50 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 6/30/2016	Precinct: 123
Date/Time CV Reported Fri, 01/02/2015 1:17 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/02/2015 1:17 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Fortunato	13038	952743	123 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Valerie Matteo	04188	950848	123 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gregory Fortunato	Discourtesy: PO Gregory Fortunato spoke rudely to § 87(2)(b)	A . Unsubstantiated

Case Summary

On January 2, 2015, § 87(2)(b) filed the following complaint by telephone with the CCRB.

On December 31, 2014, § 87(2)(b) quarreled with her neighbor, § 87(2)(b), with whom she has had an ongoing dispute, and § 87(2)(b) called police. At approximately 3:50 p.m. PO Gregory Fortunato and PO Valerie Matteo of the 123rd Precinct responded and spoke to § 87(2)(b) and her husband. After the officers returned to their RMP and prepared to leave, § 87(2)(b) approached PO Fortunato's driver's window to speak to him about the dispute. PO Fortunato allegedly said to § 87(2)(b) "Get the fuck away from my car" (**Allegation A**). PO Fortunato and PO Matteo exited the RMP and briefly interacted with § 87(2)(b)'s friend, § 87(2)(b) before leaving the scene.

Mediation, Civil Proceedings, and Criminal Conviction History

§ 87(2)(b) declined the option of mediation § 87(2)(b). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] The investigator requested copy of any relevant Notice of Claim from the NYC Comptroller on January 22, 2015, which will be added to the case file upon receipt (encl. 13).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 1b).
- PO Fortunato has been a member of the NYPD for 2 years. This is his first CCRB complaint (encl. 1a).

Finding and Recommendations

Allegations Not Pleaded

- **Discourtesy:** § 87(2)(b) alleged that PO Fortunato used profanity when speaking to § 87(2)(b) but § 87(2)(b) did not make any such allegation.

Recommendations

- **Allegation A—Discourtesy: PO Gregory Fortunato spoke rudely to § 87(2)(b)**

It is undisputed that § 87(2)(b) spoke to PO Fortunato at his driver's window while he sat in his RMP, and that PO Fortunato eventually exited the vehicle and spoke briefly to § 87(2)(b) and § 87(2)(b).

In the statement she provided when she filed the complaint, § 87(2)(b) recounted that she tried to explain her side of the dispute to PO Fortunato and to ask how she should handle her problem with § 87(2)(b) (encl. 2b). She alleged that during this conversation PO Fortunato said, "I'm fucking sick of coming here," and, "I told you to get the fuck away from my car." She further alleged that after PO Fortunato exited the RMP, he said, "I'm sick and tired of fucking coming here. Do you understand? Resolve your own fucking problems." She also alleged that PO Fortunato said to § 87(2)(b) "Really? You're fucking retired? What the fuck does that mean to me?"

During her interview at the CCRB, § 87(2)(b) did not make the same allegations of discourtesy (encl. 3b-3c). She described the incident in greater detail, admitted that PO Fortunato had asked her to back away from his window at least three or four times, and again recounted PO Fortunato having said that she needed to resolve her issues on her own and that he was tired of coming to the location. However, at no point during her description of the incident did she allege that PO Fortunato used profanity in speaking to her or to § 87(2)(b). When asked if she was

paraphrasing PO Fortunato or quoting him directly, she insisted that he said, “Get away from my car,” I’m sick of coming here,” and “I have better things to do with my time.” It was only after the investigator asked whether PO Fortunato ever used profanity that § 87(2)(b) stated that he said, “Get the fuck away from my car.” She also confirmed that this was the only time during the incident that PO Fortunato used profanity.

§ 87(2)(b) reported hearing PO Fortunato say, “Back away from my fucking car,” while he was inside the RMP (encl. 4). He also alleged hearing PO Fortunato yell, “I’m tired of fucking coming here! I have better fucking things to do!” when he exited the RMP. He did not allege that PO Fortunato used any profanity against him. § 87(2)(g)

PO Fortunato stated that § 87(2)(b) stuck her face through his window and began screaming about her ongoing dispute with § 87(2)(b) and that he ordered her to back up approximately four times (encl. 5e). He exited and stood face to face with § 87(2)(b) who told him he was “retired on the job” and that he would call the CCRB. PO Fortunato denied using any profanity during the incident. PO Matteo provided a similar description of the incident and denied hearing PO Fortunato ever use profanity (encl. 6f).

§ 87(2)(g)
Therefore it is recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: 2

Investigator:	_____	<u>Daniel Giansante</u>	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date